EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Applications nos. 24504/11 and 69422/13
Shukur IZZAT OGLU and Ali BASHIRLI
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 9 January 2018 as a Committee composed of:

Erik Møse, *President,*
Síofra O'Leary,
Lətif Hüseynov, *judges,*

and Anne-Marie Dougin, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on 4 April 2011 and 5 September 2013 respectively,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicants in both cases, Mr Shukur Izzat oglu and Mr Ali Bashirli, are Azerbaijani nationals, who were born in 1956 and 1952 respectively and live in Shirvan. In respect of application no. 24504/11, they were represented before the Court by Mr A. Nagiyev, a lawyer practising in Azerbaijan. In respect of application no. 69422/13, they were represented before the Court by Mr I. Aliyev, a lawyer practising in Azerbaijan.

2. The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

3. In application no. 24504/11, the applicants complained under Articles 6 and 11 of the Convention that the refusal by the authorities to register an association which they had founded had amounted to a violation of their right to freedom of association and that the court proceedings they had initiated in this respect had been unfair.

4. In application no. 69422/13, the applicants complained under Article 11 of the Convention of the authorities' repeated refusal to register

the same association after they had re-submitted their registration request. They also complained that the State authorities had seized the case file relating to their application from the office of Mr Aliyev, their representative, infringing their right of individual application under Article 34 of the Convention.

5. On 11 October 2016 (in respect of application no. 24504/11) and 26 January 2017 (in respect of application no. 69422/13) the Court decided to give notice to the Government of the applicants' complaints detailed above.

6. On 6 February 2017 and 30 May 2017 the Government submitted to the Registry their observations on the admissibility and merits of the applications. These were forwarded to the applicants, who were invited to submit observations in reply.

7. The applicants did not submit observations. Instead, on 13 July 2017 (in respect of application no. 69422/13) and 14 September 2017 (in respect of application no. 24504/11) the applicants' representatives informed the Court that the applicants wanted to withdraw their applications since they no longer intended to pursue them.

THE LAW

8. In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention or its Protocols, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases.

Done in English and notified in writing on 1 February 2018.

Anne-Marie Dougin
Acting Deputy Registrar

Erik Møse
President